

19PR00554 Matter of Robert and Darliene Stowasser Revocable Trust date 1/22/1987

County: santa-barbara

Division: Probate

Department: 3 SB-Anacapa

Hearing date: 2026-09-09

Motion: CMC; Motion for Consolidation

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Tentative Ruling: Matter of Robert and Darliene Stowasser Revocable Trust date 1/22/1987

Case Number

19PR00554

Case Type

Probate

Hearing Date / Time

Wed, 09/09/2026 - 09:30

Nature of Proceedings

CMC; Motion for Consolidation

Tentative Ruling

James Buttery for Beneficiary Wendy Teixeira

Todd Hunt for Trustee Robert Stowasser Jr

Vincent T. Martinez for Beneficiary Robert Stowasser, Jr.

Zachary E. Tinker for Beneficiary Julie E. Stowasser

Jennifer Shay is Beneficiary In Pro Per

Zachariah Stillwater is Beneficiary In Pro Per

Andrea Stowasser Shay is Beneficiary In Pro Per

Catherine L. Teixeira Beneficiary

RULINGS

Any objections to the Trustee's pending "Petition For Approval of Sixth and Final Account and Report of Successor Trustee [and] Request for Order of Final Distributions" filed on May 8, 2026 shall be filed NO LATER THAN 9/23/2026.

Trustee's request that his accounting petition should be given priority for consideration and approval is GRANTED. The Trust's only asset is the less than \$58,000 in its checking account. This figure is down from greater than \$11,000,000 in assets held in the Trust in 2019. In order to avoid filing tax returns for the 2027 tax year, the Trust must make final distributions within the first sixty-five days of 2027, thus time is of the essence.

Trustee's request that the Court set a schedule that moves the Petition forward as soon as and as quickly as possible is GRANTED.

The evidentiary hearing is set for 9 am on Tuesday 9/29/26 [there is a 5 hour estimate].

With regard to the two probate petitions recently filed by Jennifer Shay (Case Nos. 26PR00304 and 26PR00305), these matters are improper, and Jennifer Shay is estopped and otherwise barred from proceeding on them. The 2026 petitions seek only to re-open matters previously addressed and ruled upon by the Court over objection. The Motion for Consolidation is therefore DENIED.

The request for discovery is DENIED. The time for such discovery has long passed in light of the history of the case and the rulings made today. Moreover, based upon CMCS and other information submitted for this hearing, and the rulings made above, it is neither necessary nor appropriate.

Any party wishing to pursue a contempt hearing may do so via filing a motion after the Court rules on the above matters.

All requests made by the participants have been read and considered and, except as set forth above, are DENIED.

Analysis

The case was last on the 8/28/26 calendar: The parties and attorneys appeared via Zoom. Zachary Tinker presented oral argument. Jennifer Shay, Petitioner on related cases 26PR00304 and 26PR00305 presented oral argument. The Court denied the request for reconsideration. The case remains in this Department. The Court acknowledged the 9/9/26 Motion for Consolidation set for Dept 3 at 9:30 a.m. The Court further set a Case Management Conference Re: Scheduling for 9/9/26

Case Management Conference

CMCS by James Buttery

Filed 9/2/26 [cannot cut and paste – security installed]; summarized; this action was initiated in 12/2019 by filing a petition concerning the interpretation and validity of certain amendments to the Robert and Darlene Stowasser Trust date 1/22/1987. The Trustees also petitioned the Court to take jurisdiction of the Trust and to instruct them. The Court subsequently ruled on various trust matters and approved 5 accounting. Requests a court trial; no trial date set; if an evidentiary hearing is set regarding the 6th Accounting it is estimated that such proceeding would take less than 5 hours. Attaches a short declaration: summarized: In 2021 the parties reached a settlement that resolved the dispute over certain trust amendments and the claims of a successor co-trustee who resigned. Following the settlement the dispute in the Trust Case centered around the action of the remaining Successor Trustee Robert Stowasser, Jr. Between 2022 and 2025 the Court approved several accountings and approved the distributions of Trust assets and payment of expenses that reduced the Trust from \$11 million to \$262,000. According to the 7/31/26 bank account for the Trust only \$60,000 remains. On 5/6/26 counsel for the Successor Trustee filed the Petition for Approval of 6th and Final Account; requested final distribution for 1/1/25 through 12/31/25; 6th accounting detailed that \$100,000 had been distributed equally to Julie Stowasser, Jennifer Shay, Andrea Stowasser-Shay and Zachary Stillwater, requested approval of Successor Trustee's payment of certain expenses and requested authority to make final distributions to the beneficiaries. A hearing on the 6th accounting was set for 6/22/28 but did not occur because of Judge Beeb's recusal. Jennifer Shay filed the related probate cases on June 17, 2026. Wendy Teixeira is a 25% beneficiary of the Trust and she requests the Court take the following actions in the Trust Case before deciding what, if any, matters need to be considered in the Probate Cases.

1. Postpone action on Jennifer Shay's Motion for Consolidation until it is clear that there is a need to administer a probate proceeding for either Robert Stowasser Sr or Darlene Stowasser.
2. Set a date no later than 9/20/26 for filing written objections to the 6th Accounting.
3. Reserve a date for an evidentiary hearing on any objections to the 6th Accounting and that such hearing be set no later than 10/15/26 – [provides no time estimate or witness list].
4. Assess the need to continue the Probate Cases after the evidentiary hearing on the 6th Accounting and determine if one or both Probate Cases are estopped by the completion of the Trust Case.

CMCS from Jennifer Shay

Filed 9/2/26; 11 pages; summarized: no trial date set: the two probate petitions are on calendar for September 9, 2026. These matters may require separate probate hearings; requests a court trial but gives no time estimate: Petitioner has surgery on October 7, 2026. Petitioner is unavailable October 7 through October 21, 2026. Discovery needs to be done. Petitioner anticipates the trustee will continue to object to production. Petitioner does not seek to reopen prior accounts already approved. Petitioner attempted to meet and confer. Robert Stowasser Jr is represented by Todd Hunt as trustee and by Vincent Martinez as beneficiary. On September 1, 2026 Mr. Martinez wrote: On behalf of Beneficiary Robert Stowasser, Jr., I will represent that I am not in agreement to discuss such a Petition, it is irrelevant. Mr. Hunt served a case management report on September 1, 2026 without conferring. Mr. Buttery filed a statement on September 2, 2026 and left item 19 blank. On September 2, 2026, petitioner sent a written request to confer by September 4, 2026. The rule 3.724 deadline, thirty days before the conference, was August 10, 2026, and has passed.

Brief Statement of the Case

1. This statement covers the consolidated trust proceeding, 19PR00554 lead, consolidated with 19PR00569, and two related probate petitions, 26PR00304 and 26PR00305.

2. The two probate petitions, filed June 17, 2026, concern authenticated copies of the separate wills of Darliene Stowasser and Robert Stowasser Sr.
3. Each will was signed August 30, 1992.
4. The petitions seek probate of the wills and letters of administration with will annexed.
5. The court never issued Letters in either estate.
6. The petitions remain pending. The trustee opposes them.
7. Darliene Stowasser died August 15, 2018. Robert Stowasser Sr died May 5, 2019.
8. The current accounting does not address the period from August 15, 2018 through December 31, 2019, or the transfer records requested.
9. No damages are sought. Relief is equitable and probate in nature.
10. Petitioner appears in propria persona.

Discovery Status

1. Section 529 college fund transfer records, \$140,000.
2. Receivable from Stowasser corporation, repayment records, \$1,264,707.
3. Employee pension trust, county record 1999-0008461, plan records.
4. Darliene and Robert Sr payroll records.
5. R and C Stowasser Rewarranty Ltd, 2019 ownership - register of members, share certificates, and valuation records.
6. These records cover the period August 15, 2018 through December 31, 2019 and the ownership and transfer issues.
7. The court ordered production of certain ownership and related records on August 21, 2025, with a deadline of September 5, 2025.
8. The trustee never produced those records in the form required.
9. Petitioner does not state that discovery will be completed by any date. The court has not authorized further discovery, and the prior production order remains unsatisfied.

10. Petitioner seeks reconsideration, clarification, or other appropriate relief concerning the outstanding production obligations and related transfer records.

11. Petitioner does not seek to reopen accounts already approved by the court.

Additional Matters for the Case Management Conference

1. Accounting period and transfer records

a. The current accounting does not address the period from August 15, 2018 through December 31, 2019, or the transfer records requested.

b. Petitioner will file written objections to the sixth and final account by September 20, 2026.

c. Petitioner asks that the court not approve the sixth and final account at this conference.

2. Status of the two probate petitions

a. The two probate petitions, 26PR00304 and 26PR00305, were filed June 17, 2026. They remain pending.

b. They concern authenticated copies of the separate wills of Darlene Stowasser and Robert Stowasser Sr.

c. The trustee opposes them.

d. The August 26, 2026 minute order confirmed the September 9 hearing. It did not rule on the petitions, the accounting, or consolidation. Those matters remain pending.

3. Estoppel requires identification of the doctrine and the record

Rule. A party seeking to bar a proceeding by estoppel must identify the particular doctrine and establish its required elements.

Facts. The trustee opposes the two probate petitions. The petitions concern authenticated copies of separate wills executed by the two settlors. The trust proceeding is 19PR00554, consolidated with 19PR00569. The probate matters are 26PR00304 and 26PR00305. The trustee never identified the prior order that allegedly decided the probate issues.

Application. The trustee never showed that the trust proceeding and the probate petitions involve the same proceeding, issue, parties, or legal rights. The trustee never identified whether he relies on judicial estoppel, collateral estoppel, claim preclusion, equitable estoppel, or another doctrine.

Ruling requested. Set both probate petitions for hearing, or require the trustee to identify the estoppel doctrine, the prior adjudication, the issues decided, the persons bound, and the

supporting evidence before ruling on the defense.

4. Contempt and outstanding production order

- a. A contempt motion concerning non-compliance with the August 21, 2025 production order was filed September 18, 2025.
- b. The court has held no hearing on it.
- c. The production deadline was September 5, 2025.
- d. Petitioner filed a supplemental declaration regarding continuing non-compliance and will seek an updated hearing date.
- e. Petitioner asks that any contempt or related production issues be set for hearing before, or together with, the sixth and final account.

5. Hearing date

- a. Wendy Teixeira asks for a hearing no later than October 15, 2026.
- b. Petitioner has surgery October 7, 2026 and is unavailable October 7 through October 21, 2026.
- c. Petitioner asks for either October 7 or 22, 2026 or later for any contested accounting.

6. Counsel

- a. Todd Hunt represents Robert Stowasser Jr as trustee.
- b. Vincent Martinez represents Robert Stowasser Jr as beneficiary.
- c. James Buttery represents Wendy Teixeira.

7. Minute order

- a. If the court denies any request made in this statement or at the conference, petitioner asks that the minute order state the reason, so a clear written record exists.

Trustee, Robert Stowasser, Jr. Scheduling and CMCS

Filed 9/3/26 by Lawyer Todd Hunt: 5 pages; summarized: This matter has been heavily litigated for nearly seven years. Judge James Rigali was significantly involved in the two 2019 cases (until he recused himself), during which time he made

numerous substantive rulings that have not been overturned. Judge Rigali's rulings directed Trustee's handling of significant Trust assets, including the Settlor's home and other real estate holdings as well as personal property. Judge Jed Beebe then presided over the cases for several years -- again making many significant and substantive rulings that have not been overturned. Judge Beebe approved a negotiated settlement that removed one co-trustee and controlled the distribution of significant assets. Importantly, Judge Beebe considered and approved

five accounting petitions and directed the distribution of nearly all remaining Trust

assets. None of the prior court decisions or rulings have been pursued on appeal, and

although several of the parties are or have recently appeared in pro per, most have also

been represented by counsel during large periods of time throughout the proceedings

before Judge Rigali and Judge Beebe.

SCHEDULING MATTERS

Trustee requests that the Court set (i) a deadline for objections, if any, to and (ii)

a hearing for Trustee's pending accounting approval petition. Trustee served and filed

the "Petition For Approval of Sixth and Final Account and Report of Successor Trustee

[and] Request for Order of Final Distributions" on May 8, 2026. The Petition was

originally set for hearing on June 22, 2026, but Judge Beebe's decision to recuse

himself effectively halted all progress. Trustee also submits that his accounting petition should be given priority for consideration and approval. At this time, the Trust's only asset is the less than \$58,000 in its checking account. This figure is down from greater than \$11,000,000 in assets held in the Trust in 2019. In order to avoid filing tax returns for the 2027 tax year, the Trust must make final distributions within the first sixty-five days of 2027, thus time is of the essence. Trustee asks that the Court set a schedule that moves the Petition forward as soon as and as quickly as possible. With regard to the two probate petitions recently filed by Jennifer Shay (Case Nos. 26PR00304 and 26PR00305), Trustee submits that these matters are improper and Jennifer Shay is estopped and otherwise barred from proceeding on them. The 2026 petitions seek only to re-open matters previously addressed and ruled upon by the Court over objection.

Beneficiary Robert Stowasser Jr.s Joinder in Trustee's Scheduling and CMCS

Filed 9/3/26 by Lawyer Vincent T. Martinez; Beneficiary Robert Stowasser, Jr., joins Robert Stowasser, Jr.'s, Successor Trustee (hereinafter "Trustee") of the Robert and Darlene Stowasser Revocable Trust Dated January 22, 1987 (hereinafter "Trust") Case Management and Scheduling Statement, and agrees with, joins in the representation included in the Case Management and Scheduling Statement, as though set forth in full therein.

Motion to Consolidate

Filed by Jennifer Shay on 8/21/26.

Makes comments – Judge Beebe's recusal from the Trust Case. Jennifer Shay filed the related Probate cases on June 17, 2026.

Wendy Teixeira is a 25% residuary beneficiary of the Trust. She requests the Court take the following action in the Trust Case before deciding what if any matters need to be considered in the Probate Cases.

1. Postpone action on Jennifer Shay's Motion for Consolidation until it is clear that there is a need to administer a probate proceeding for either Robert Stowasser Sr or Darlene Stowasser.
2. Set a date no later than 9/20/26 for filing written objections to the 6th Accounting.
3. Reserve a date for an evidentiary hearing on any objections to the 6th Accounting and that such hearing be set no later than 10/15/26 – [provides no time estimate or witness list].
4. Assess the need to continue the Probate Cases after the evidentiary hearing on the 6th Accounting and determine if one or both Probate Cases are estopped by the completion of the Trust Case.

The Court's Conclusions

Orders obviously need to be made and set.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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